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F 10310/8(B)

JAPAN'S RELATIONS WITH FORMOSA.

Sir E. Dening's telegram No. 71 of January 16th contains

FLAG A. the text of a letter addressed to Mr. Dulles by the Japanese Prime Minister and dated December 24th.

2. The text of this letter was given to the United Kingdom Liaison Mission in Tokyo on January 16th while it was being

FLAG B. discussed by the Japanese Cabinet immediately before its publication, simultaneously in Tokyo and Washington.

3. The letter expresses the clear intention to sign a Peace Treaty with the "National Government of China if that Government so desires" as soon as legally possible (i.e. after the multilateral Peace Treaty comes into force).

4. The letter states that the contemplated bilateral Treaty with "the National Government of China" shall be applicable to all territories which are now or which may hereafter be under the control of that Government.

5. The letter expresses the intention not to conclude a bilateral Treaty with the Communist régime in China.

6. Sir E. Dening points out in the first paragraph of his

FLAG C. EMERGENCY telegram No. 72 of January 16th that the Americans must have been exerting pressure on the Japanese Prime Minister, while the Secretary of State was having his conversation with Mr. Acheson.

7. There are three points for immediate decision:

(a) what we should say to the Press;

(b) whether Sir E. Dening should take the matter up with the Japanese Government; and

(c) what should be said to the Americans.

8. On point (a) I recommend:

(i) approving Sir E. Dening's suggestion that he should to the Press, if asked, say that "it has always been and remains the view of H.M. Government that Japanese relations with China should be a matter for decision by the

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Japanese Government when the Peace Treaty comes into force and Japanese sovereignty is fully restored, and that H.M. Government have never at any time sought to exert pressure on the Japanese Government to follow any particular course";

(ii) instructing News Department to take the same line and in addition to point out that the Japanese Government is not committed to action until after the multilateral Peace Treaty comes into force;

(iii) instructing News Department to avoid saying that a draft of the letter (dated December 24th) was shown to the U.K. Liaison Mission in Tokyo before its publication (on January 16th), since this minor courtesy throws into relief the discourtesy of withholding its existence from us while conversations were proceeding in Washington; and

(iv) instructing Washington to follow suit.

9. On point (b) I recommend that Sir E. Dening should be instructed not to raise the matter with the Japanese Government for the reasons given in paragraphs 2 & 3 of his telegram No. 72.

FLAG O.

10. On point (c) I submit with some diffidence that Sir O. Franks be instructed to convey a message from the Secretary of State to Mr. Acheson expressing regret at this decision of the Japanese Government and pointing out that the publication of this letter immediately after the conversations in Washington weakens the statement of broad agreement on Far Eastern policy between the two governments stressed in the joint communiqué.

11. ~~I submit three drafts.~~

China & Kora Dept.

Mr R.H. Scott

(J.A. Pilcher)

16th January, 1952.

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